

9. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE AND DISMISS 1ST AMENDED COMPLAINT
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

The Court notes that Defendant Vintner raises similar standing arguments as those set forth by Defendant New Pipes. Defendant Vintner's demurrer is **SUSTAINED** for the same reasons as those set forth in the ruling on New Pipes' demurrer. See line 8.

11. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT
FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

See Line 8.

12. 9:00 AM CASE NUMBER: C25-01210
CASE NAME: SHARON DE EDWARDS MD VS. NANDI ROBISON
*HEARING ON MOTION IN RE: MOTION TO DISMISS CONTINUED FROM 2/2/26
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Nandi Robison's Motion to Dismiss.

Factual Allegations and Procedural Background

This matter pertains to allegations that Plaintiff provided medical services to Defendant for which Defendant failed to make payment. It is alleged that Defendant initially used a credit card to charge \$451.91 for a medical consultation. Defendant thereafter reported the charge to her credit card company as a fraudulent charge and received a refund. After calling the credit card company, Defendant went to Plaintiff's office and indicated that her health plan was sending payment for the services and requested a refund of the \$451.91. Plaintiff issued Defendant a check for \$476.91 (which

included payment of Defendant's copay of \$25), which Defendant thereafter cashed.

Based on the above, Plaintiff filed her complaint on April 29, 2025, alleging three causes of action: (1) fraud; (2) false light; and (3) defamation. Plaintiff's prayer seeks \$30,000 in compensatory damages as well as \$10,000 in punitive damages.

Defendant filed her answer on June 11, 2025. Defendant then filed this motion to dismiss on September 22, 2025. On February 26, the Court issued its tentative ruling continuing the hearing to March 9 to allow the parties time to properly meet and confer as required by Code of Civil Procedure section 439. In that order, the Court made the following observation:

"The Court has concerns that this matter should not be classified as an unlimited civil matter and/or should be resolved through other means. The Court will address those concerns after it hears from the Parties regarding their meet and confer."

Plaintiff's counsel filed the requested declaration on February 13 indicating that the parties met and conferred "but could not come to an agreement to resolution, and therefore the Court should proceed with ruling on the motion for judgment on the pleadings."

Applicable Law

In all unlimited cases where the amount in controversy does not exceed \$50,000, the case "must be arbitrated." (Cal. R. Ct. 3.811(a); Code Civ. Proc. § 1411.11.) "California Code of Civil Procedure section 1141.10 et seq. allows the Court to require all cases where the amount in dispute is \$50,000 or less to be submitted to either judicial arbitration or to mediation if the judge finds it to be appropriate in a particular case." (Local Rule 3.202(a).)

The Code requires that the determination of the amount in controversy be made at a case management conference "or based upon review of the written submissions of the parties," and "all named parties have appeared or defaulted," (Code Civ. Proc. § 1141.16(a).) The present matter includes a single plaintiff and a single defendant, both of which have appeared.

The Court has reviewed the Complaint, Answer, and Case Management Conference statements submitted by the parties. The Court has also reviewed the parties' submissions related to the motion to dismiss.

The main issue in the Complaint relates to an alleged disputed credit card charge in the amount of \$451.91. Plaintiff contends that Defendant reported the charge as a 'fraudulent' charge and requested a chargeback. Based on these allegations, Plaintiff asserts three causes of action: (1) fraud; (2) false light; and (3) defamation. She prays for compensatory damages of \$30,000 as well as punitive damages. No request for equitable relief is asserted.

Defendant denies that she reported the charge as fraudulent, but instead she indicates that the chargeback was the result of miscommunications between her insurance provider, herself, and Plaintiff's office.

The Court finds that the amount in controversy falls below the \$50,000 threshold required to send this matter to judicial arbitration. Initially, the Court notes that the Plaintiff seeks \$30,000 in compensatory damages – which is below the threshold. Even if the Court considers the \$10,000 in punitive damages sought by Plaintiff, that full amount sought by the Complaint falls below the \$50,000 threshold. (The Court notes that the request for a specific amount of punitive damages in a

complaint is prohibited – see Civ. Code § 3295(e) [“No claim for exemplary damages shall state an amount or amounts.”])

The Court also finds that Plaintiff’s asserted damages are well above those reasonably available to her based on the allegations in the Complaint. There are no facts supporting such a large request for compensatory damages. Even if a meritless notification of a ‘fraudulent’ charge to a credit card company could be considered fraud or defamation, there is no explanation or reasonable basis for determining that Plaintiff was actually damaged by this procedure or that those damages run into the thousands much less tens of thousands of dollars.

The Court also notes that both parties’ CMC statements indicate that they are amenable to ADR of some kind.

Conclusion

The Court finds that this matter is subject to mandatory judicial arbitration in accordance with Code of Civil Procedure section 1411.10 et seq. As such, any determination as to the merits of the case must be decided by the arbitrator. Accordingly, the motion to dismiss is **DENIED** without prejudice.

The Parties are ordered to contact the Court’s ADR Program Office (adrweb@contracosta.courts.ca.gov) to select an arbitrator for this matter and to proceed with judicial arbitration under the Court’s rules.

13. 9:00 AM CASE NUMBER: C25-01838
CASE NAME: HARLEY CONSTANTIN VS. FOTUALLI FANO
***HEARING ON MOTION IN RE: TO STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: CRIST, FRITSCHI & PATERSON,
TENTATIVE RULING:

Before the Court is Defendants Crist, Fritsch, & Paterson, Inc.’s (“CF&P”) and Fotualli Fano’s (“Ms. Fano”) motion to strike. The motion to strike relates to the Complaint for (1) Negligence (as to procurement of Liberty Mutual policy), (2) Negligence (as to procurement of Gemini policy), (3) Negligent Misrepresentation, (4) Unfair Business Practices, and (5) Declaratory Relief filed by Harley Constantin d/b/a Victor Electric (“Plaintiff” or “Mr. Constantin”).

Defendants, pursuant to California Codes of Civil Procedure §§ 435 and 436, move to strike the following portions of Plaintiff’s complaint in this action: (1) the request for restitution of premiums, (2) the request for injunctive relief, (3) the request for attorney’s fees pursuant to the UCL and California Code of Civil Procedure section 1021.5, and (4) the request for declaratory relief. Defendants contend these remedies are improper as a matter of law because premiums were paid to insurers rather than Defendants, precluding restitution; the complaint alleges no pattern or practice supporting injunctive relief; Plaintiff does not qualify for attorney’s fees under the UCL or California Code of Civil Procedure section 1021.5; and Plaintiff has not alleged sufficient facts to establish an actual present controversy warranting declaratory relief.

Plaintiff opposes Defendants’ motion to strike, arguing that restitution, injunctive relief, and attorney’s fees are all properly pled and that striking them at the pleading stage improperly resolves disputed